party organisation. "No one can snatch Shiv Sainiks from the Shiv Sena," Uddhav told reporters on July 8. "There is no question of anyone staking claim on our 'bow and arrow' (the Sena symbol)." Legal voices say the Shinde faction can lay a claim on the symbol only if the party itself undergoes a vertical split. "The legislative party is different from the political party registered with the Election Commission," says constitutional expert Ulhas Bapat. "The EC will come into the picture only if there's a vertical split in the party organisation."

In the assembly, the Shinde faction has skimmed a grey area in law by claiming it represents the original Shiv Sena. According to the 10th schedule of the Constitution, even if two-third MLAs break from a legislature party, they cannot form a separate group. They have to merge with a political party to keep their membership of the assembly intact. In this case, the decision whether to recognise the Shinde faction as the Shiv Sena lies with speaker Rahul Narwekar. His decision could be challenged in court. The first on-ground battle of supremacy between the two factions will come on August 18, the day when elections to 94 municipal councils are due. Shinde has said he will seek a deferment 'in view of the monsoon'. However, if the elections are held as per schedule, pundit and commoner alike will be watching curiously to see who gets to hold the bow and arrow. Uddhav has even kept the option of a patch-up with the rebels open, with a rider. "They are welcome but not with the party that has given us only pain," he told reporters on July 8. He meant the BJP, of course, which he says is on a mission to finish the Shiv Sena and eat up its political space.

Meanwhile, he's leaving no stone unturned to keep his flock together. Son Aaditya has been visiting party offices in Mumbai to explain the deposed CM's stand to the cadre. And there is a section receptive to that narrative. Aurangabad mayor Nandkumar Ghodile, for instance, says he will stick with the Thackerays, whatever the odds. "The Sena has stood firm amid every crisis so far. We will overcome this one too." Sena workers talk of a change in atmosphere at 'Matoshree', the Thackeray residence in Bandra East. "Earlier, we had to wait a long time for an audience," says a worker from Mumbai. "No one even asked if we were hungry. When I visited last week, I was offered snacks and a bottle of water. It was a pleasant surprise."

THE POACHERS

CM Shinde, meanwhile, is attempting to impress the common Sainik via "development", while taking care not to confuse the cadre by directly gunning for the Thackerays. His faction's petition to speaker Narwekar to disqualify 14 pro-Uddhav MLAs (for 'disobeying' Shinde camp chief whip Bharat Gogavale) pointedly omits Aaditya's name. "We have utmost respect for the Thackeray family. We don't want Aaditya to lose his assembly membership. He's the grandson of our deity, Balasaheb," Shinde told reporters on July 5. At the same time, he's carefully avoiding the mistakes his predecessor made. Uddhav did not care much for the names advanced by MLAs for government posts, says an NCP leader. "Shinde seems to be keen on approving recommendations by MLAs. That makes a huge impact." Within a week of taking over, Shinde took two big decisions based on the suggestions of his supporters. He approved the disbursal of Rs 21 crore for the development of Hirkani village in Raigad district, a site of historical significance in Maratha history. He also announced on July 7 that land will be made available at Koregaon in Satara for the Bengaluru-Mumbai Industrial Corridor, something local MLA Mahesh Shinde had demanded.

The CM may have thus won over Sena MLAs from rural constituencies outside Mumbai, but a barrier still remains—that's the till-now impregnable phalanx formed by the cadre around the Thackerays. And that's where the game will shift now, close to where Uddhav has dug his trenches. There's still some fight left in him. Sena MP Vinayak Raut claims the party rank and file is not with Shinde. "Sainiks are emotionally attached to Balasaheb. They can't imagine the Shiv Sena without a Thackeray." ■

A MIXED BAG

With Uddhav Thackeray at the helm, Shiv Sena's performance in the elections has been inconsistent

